

Service of Documents

The court notes the parties' competing accusations regarding service of documents. The court admonishes all parties that all future service must comply with the CCP and the applicable rules of court.

Disposition

The motions are granted. The default entered on or about December 26, 2023 is set aside, the default judgment entered on May 22, 2025 is vacated, and service of the summons and First Amended Complaint on or about September 24, 2024 is quashed.

4. 9:00 AM CASE NUMBER: C22-01911
CASE NAME: TYSHAUN BUTLER VS. HYATT HOTELS CORPORATION
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: HYATT HOTELS CORPORATION
TENTATIVE RULING:

Summary

Defendant Hyatt Hotels Corporation's Motion for Terminating Sanctions is **granted** as set forth below.

Background

Plaintiff Tyshaun Butler initiated this action on September 9, 2022, alleging personal injury resulting from a bedbug incident at Defendant's hotel property located at 2611 Contra Costa Blvd., Pleasant Hill, California. Defendant served discovery upon Plaintiff in the form of Form Interrogatories, Set One. Pursuant to a Court Order dated May 14, 2025, Plaintiff failed to provide verified responses to said discovery.

On September 15, 2025, Defendant Hyatt Hotels Corporation filed its Motion for Terminating Sanctions, pursuant to Cal. Code of Civil Procedure § 2023.030 ("Motion") The Motion is supported by a Notice of Motion, an Amended Notice filed September 19, 2025, a Memorandum of Points and Authorities, a Declaration of Counsel of Monica Castillo, and a proposed order. The grounds for the motion are Plaintiff's failure to serve a verified response to the discovery propounded by Defendant. The Motion is not opposed by Plaintiff Tyshaun Butler.

Analysis

A. Plaintiff's Status as a Self-Represented Litigant

The Court is cognizant that Plaintiff is proceeding in *propria persona*. However, the law is clear that a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Consequently, self-represented litigants, like their represented counterparts, are bound by the procedural rules governing civil litigation. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 (stating that "mere self-representation is not a ground for exceptionally lenient treatment" and procedural rules apply equally); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121

(holding self-represented parties to the "same 'restrictive procedural rules as an attorney'").

While self-represented litigants are not entitled to special treatment, *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523, trial courts are mindful of their potential lack of legal sophistication. As noted in *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements." The court has a duty to ensure such litigants are not inadvertently misled. In the present case, the record is devoid of any evidence that Plaintiff was misled by either the Court or Defendant. To the contrary, the Court's prior orders established clear deadlines for compliance with discovery obligations, which Plaintiff willfully disregarded.

Plaintiff's Failure to Oppose the Motion

California Rules of Court, Rule 8.54(c) provides that "A failure to oppose a motion may be deemed a consent to the granting of the motion." This principle is well-established in case law. *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The failure to file a timely opposition is "well-within" the court's discretion to deem such inaction "tantamount to a concession that its position in the litigation was not substantially justified." *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989)). Furthermore, a failure to address or oppose an issue in a motion constitutes a waiver of that issue. *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288. Similarly, a failure to support a point with reasoned argument and relevant authority also constitutes waiver. *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785.

Applied to the present matter, Plaintiff's failure to file any opposition to the Motion for Terminating Sanctions is deemed a consent to the granting of the relief sought by Defendant.

Code of Civil Procedure § 2030.060 requires Plaintiff to serve responses to interrogatories within thirty (30) days of service. Where a party fails to serve a timely response, Section 2023(d)(3) allows the Court to impose "an order dismissing the action, or any part of the action, of that party."

Ruling

Based on the foregoing, the Court finds good cause to grant Defendant's Motion for Terminating Sanctions. It is therefore ordered that Defendant Hyatt Hotels Corporation's Motion for Terminating Sanctions is **granted**. It is further ordered that this action is **dismissed** with prejudice. The Court will to execute the proposed order lodged by Defendant on September 15, 2025 and orders the Defendant to file a Judgment accordingly.

5. 9:00 AM CASE NUMBER: C23-01292
CASE NAME: PATRICIA KUBICHEK VS. MICHAEL YRUETA
HEARING IN RE: JOINDER IN DEF'S MOTION TO COMPEL PATRICIA KUBICHEK'S DEPOSITION
FILED BY: YRUETA, MICHAEL
TENTATIVE RULING:

See Tentative Ruling for Line 20, below.